

Standing

Administrative Law 2026

Week 6

What's next...





Recap....

Last week we began to look at Judicial review:

- The history of common law judicial review
- The constitutional basis of judicial review in Australian courts.
- Statutory judicial review- the ADJR Act
- Discussed the preliminary requirement in s3:

.... a decision... of an administrative character...made under an enactment.

And the concept of justiciability



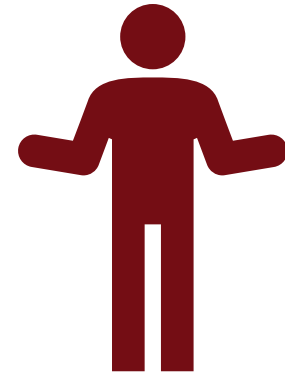
About This Topic

We will consider: Limits on judicial review

- Who can sue for review of government decisions?
- Can only individuals sue, or also organisations?
- Why is access to review limited?

What is standing....

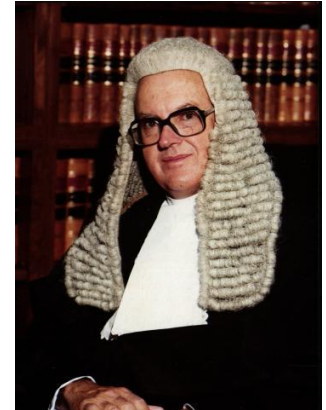
- The right to commence an action and the right to be heard
 - Locus standi
- Widely recognised by the courts that when individuals are affected by flawed government decisions they should have some recourse
- *Hussein v Secretary of the Department of Immigration and Multicultural and Indigenous Affairs* (2006) 90 ALD 285, 294 [46] (Graham J)
- ‘....designed to ensure that applicants only litigate their own business. For an applicant to have standing demands a connection between the applicant's interests and the relief sought. As a general rule the Court will not recognize busybodies who interfere in things that do not concern them.’
- Case concerned a complaint to the AFP by a detainee about ‘work’ by detainees at Villawood detention facility
- An individual, corporation or organisation affected by a decision initiates and controls the conduct of proceeding.



Why do we have standing requirements?



*On one hand it may be thought that in a community which professes to live by the **rule of law** the courts should be open to anyone who genuinely seeks to prevent the law from being ignored or violated. On the other hand, if standing is accorded to any citizen to sue to prevent breaches of the law by another, there exists the possibility, not only that the processes of the law will **be abused by busybodies and cranks** and persons actuated by malice, but also that persons or groups who feel strongly enough about an issue will be prepared to put some other citizen, with whom they have had no relationship, and **whose actions have not affected them except by causing them intellectual or emotional concern**, to very great cost and **inconvenience** in defending the legality of his actions.*



- Gibbs CJ, *Onus v Alcoa* (1981) 149 CLR 27, 35.

Why do we have standing requirements?

- McHugh J, *Bateman's Bay Aboriginal Land Council v ACB Fund* (1998) 194 CLR 247, 275-276
- 'Absent interference...with a private legal right (I use the term 'right' to include those interests and legitimate expectations that the law protects), **an ordinary member of the public generally has no standing in the civil courts.** Those courts exist to protect the legal rights of individuals, not to ensure that individuals or public officials obey the law... [E]xamining, restraining or directing the conduct of...public officials...is merely an incident of the protection of rights of the individual, except in those cases where the court is acting under a statute that gives it jurisdiction to review such conduct
- – Joint judgment of Gaudron, Gummow & Kirby JJ was more open to vindication of public rights



But who can challenge?

- *Re McBain; Ex Parte Catholic Bishops' Conference* (2002) 209 CLR 372 (again)
- *Boyce v Paddington Borough Council* [1903] 1 Ch 109: a person will have standing to challenge a decision which infringes on public rights when either:
 - Private rights have also been infringed; or
 - Special damage has been suffered
- *Australian Conservation Foundation v Commonwealth* (1980) 146 CLR 493:
 - Accepted test in *Boyce*, except special damage is not required – instead special interest must be affected.
 - A mere emotional or intellectual concern is not a special interest.
- *Onus v Alcoa of Australia Ltd* (1981) 149 CLR 27 it is possible to have a special interest in the environment provided applicant has sufficient nexus with the subject matter and relief sought.



Capricorn International Resort, Yeppoon,
which was at issue in the ACF case



Common law and constitutional standing requirements

- Traditionally the Attorney General represents the public in cases that affect the interests of the public (rare)
- State AGs can challenge action of federal Government and vice versa
- Attorney Generals' 'fiat': AG can lend the right to another (rare)



Re McBain; Ex Parte Catholic Bishops' Conference (2002) 209 CLR 372

- Woman wishing to access IVF brought the action
- Successful. Vic act inconsistent with Commonwealth Sex Discrimination Act (s109 Inconsistency)
- Parties to the action in the Federal Court were the Victorian Minister for Health, the Infertility Treatment Authority and Ms Meldrum.
- Australian Catholic Bishops conference were involved as 'amicus curiae' –friend of the court
- ACBC could not appeal, but thought the decision flawed.
- AG granted fiat to bring before High Court (unsuccessful)



Standing vs 'matter' in Constitution s 75

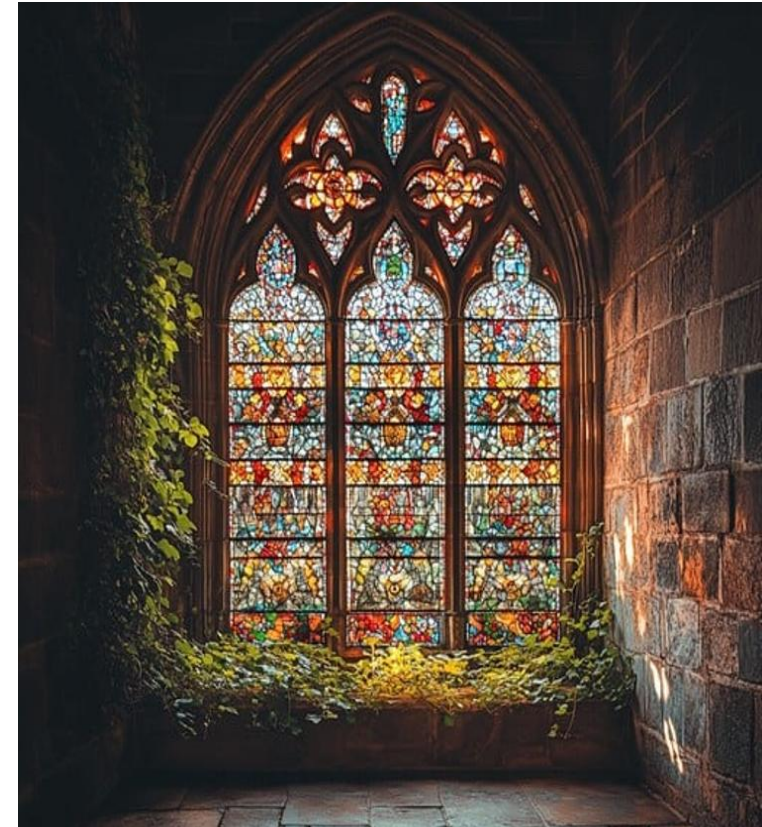
- Hayne J, *Re McBain* at [243]
- ***“Because a ‘matter’ involves the existence of a controversy about ‘some immediate right, duty or liability’ to be established by determination of the court (In re Judiciary and Navigation Acts (1921) 29 CLR 257 at 265) it will often be the case that an attempt by a person who has no more than a theoretical interest in the subject-matter to agitate a question about the rights, duties or liabilities of another will not give rise to any ‘matter’. That conclusion can be, and often is, expressed in terms of standing”***



Boyce v Paddington Borough Council [1903] 1 Ch109



- Special damage is the test at common law (UK)
- Mr Boyce was challenging a decision that would impede the view from his property
- Court held that private individuals could sue for the performance of public duties
- “first, where the interference with the public right is such as that some private right of his is at the same time interfered with ... and, secondly, where no private right is interfered with, but the plaintiff, in respect of his public right, suffers special damage peculiar to himself from the interference with the public right”
- **NB** where **Private rights** have also been infringed; or **Special damage** has been suffered





In Australia =special interest...

Standing is a rule in administrative law that requires parties to demonstrate that they have a **special interest** in the subject matter of the decision they wish to challenge in judicial review proceedings.

“a stepping stone on which all else depends’ (Groves, 2016: 167)

- Standing rules limit access to the courts.

Australian Conservation Foundation v Commonwealth (1980) 146 CLR 493



ACT No 1

ACF sought to challenge a decision of the Reserve Bank to approve foreign investment for a tourist development in Queensland re: environmental impacts

- ACF unsuccessful.
- Held: no standing
- Accepted and modified test in *Boyce*, replaced special damage with special interest must be affected.
- A **mere emotional or intellectual concern** is not a special interest (Gibbs J at 530)
- 'a mere belief or concern, however genuine, does not in itself constitute a sufficient locus standi': (Mason J at 548)
- However Gibbs J allowed that 'a person might have a special interest in the preservation of a particular environment' (at 530)





Special interest test in ACF No 1

“I would not deny that a person might have a special interest in the preservation of a particular environment. However, an interest for present purposes does not mean a mere intellectual or emotional concern. A person is not interested within the meaning of the rule unless he is likely to gain some advantage, other than the satisfaction of righting a wrong, upholding a principle or winning a contest, if his action succeeds ought to suffer some disadvantage, other than a sense of grievance or a debt for costs if his action fails. A belief however strongly felt, that the law generally, or a particular law should be observed or that conduct of a particular kind should be prevented, does not suffice to give its possessor locus standi. If that were not so, the rule requiring special interest would be meaningless any plaintiff who felt strongly enough to bring an action could maintain it. Gibbs J at 530.

Hussein v Secretary of the Department of Immigration and Multicultural and Indigenous Affairs (2006) 90 ALD 285, 294 [46] (Graham J)



Standing is:

“....designed to ensure that applicants only litigate their own business. For an applicant to have standing demands a connection between the applicant's interests and the relief sought. As a general rule the Court will not recognise busybodies who interfere in things that do not concern them.”

Hussein v Secretary of the Department of Immigration and Multicultural and Indigenous Affairs (2006) 90 ALD 285, 294 [46] (Graham J)





Standing since ACF

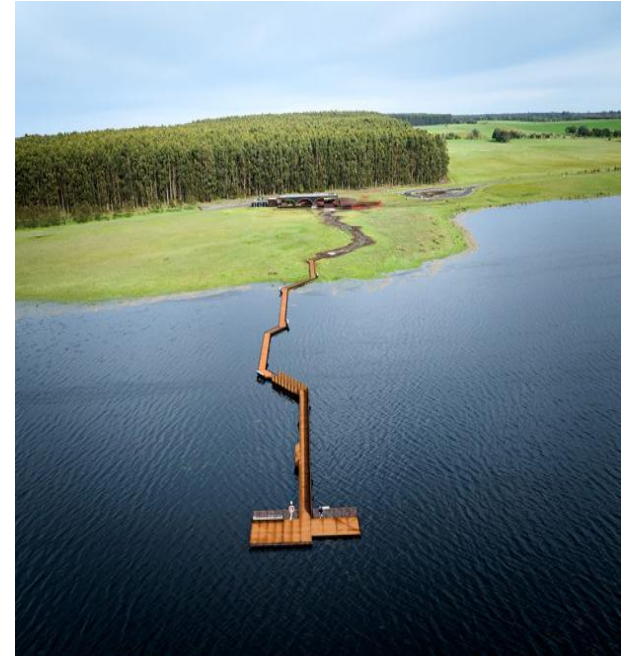
What's next...

Onus v Alcoa of Australia Ltd (1981) 149 CLR 27



Building of an aluminium smelter in Portland. Aboriginal claimants seeking to protect relics of special significance to them.

- Standing granted on the basis that s lived close to the affected area and had a role in protecting the site.
- Court recognised strong spiritual and cultural connection.
- le there was a clear and sufficient connection between the claimants and the subject matter of the decision
- Per Brennan J applicants must show they are “affected to a substantially greater degree or in a significantly different manner’ than members of the general public.” (at 54).



Source: Parks Victoria Budj Bim area on Gunditjmara land

Bateman's Bay Local Aboriginal Land Council v The Aboriginal Community Benefit Fund Pty Limited (1998) 194 CLR 247



- Dispute over competing funeral funds. Special interest recognised was a commercial one
- High Court retained the special interest test
- But noted 'an unsatisfactory weighting of the scales in favour of defendant public bodies'
- The standing rules should be enabling not restrictive.



Source: Batemans bay Tourism



Standing and the ADJR ACT

— What's next...



Standing under the ADJR Act

ADJR Act, s 5(1):

*A **person who is aggrieved** by a decision...may apply to the Federal Court for an order of review in respect of the decision...*

ADJR Act, s 3(4):

*In this Act (a) a reference to a **person aggrieved** by a decision includes a reference:*

*(i) to a person whose **interests are adversely affected** by the decision; or*

(ii) in the case of a report or recommendation, a person whose interests would be adversely affected if the decision were made in accordance with the recommendation.



Standing under the ADJR Act

*The words 'a person who is aggrieved' should not...be given a narrow construction. They should not, therefore be confined to persons who can establish that they have a **legal interest** at stake in the making of the decision. ... I am satisfied from the broad nature of the discretions which are subject to review and from the fact that the procedures are clearly intended in part to be a substitution for the more complex prerogative writ procedures that a narrow meaning was not intended. This **does not mean** that **any member of the public** can seek an order of review. I am satisfied, however, that it at least covers a person who can **show a grievance which will be suffered** as a result of the decision complained of **beyond** that which he or she has as an **ordinary member of the public**.*

Ellicott J in *Tooheys Ltd v Minister for Business and Consumer Affairs* (1981) 4 ALD 277, [79]





Standing under the ADJR Act

*Standing to challenge a decision under the ADJR Act is **determined by s 5 of the Act;***

*the authorities which address the question of standing under the **general law afford some assistance in understanding the kinds of interest which may be relevant and the kinds of effect that may be regarded as adverse.** (French CJ and Keane J, Argos, [33])*



- French CJ & Keane J in *Argos Pty Ltd v Corbell* (2014) 254 CLR 394, [33]
- In the common law's "special interest" test, and the ADJR Act's "person aggrieved" tests are generally treated as identical thresholds by the courts.
- So in a nutshell, the tests are the same (for the moment!).



Issue...

What is the scope of the standing test?

What is the status of public interest litigation?

Public interest standing



Public Interest cases

- *Australian Conservation Foundation v Commonwealth* (1980) 146 CLR 493 (see common law) (ACF No1)
- *Australian Conservation Foundation v Minister for Resources* (1989) 19 ALD 70 (ACF No 2)
- *North Coast Environment Council v Minister for Resources* (1994) 127 ALR 617;
- *Animals' Angels v Secretary, Department of Agriculture* (2014) 228 FCR 35;
- *Ogle v Strickland* (1987) 71 ALR 41; and
- *Right to Life Association (NSW) v Sec, Cth Dept of Human Services and Health* (1995) 128



North Coast Environment Council v Minister for Resources (1994) 127 ALR 617

Issue::S13 ADJR Act- “person aggrieved”

Facts:: NCEC sought reasons from minister for granting a sawmill licence.

Sackville J defined nature of the standing test for public interest groups

- Standing granted because:
 - Peak Organisation
 - Recognised by Cth govt through consultation and recurrent funding
 - Recognised by NSW govt on advisory committees
 - Conducted/coordinated projects and conferences with govt funding
 - Conducted research
 - Made submissions on forestry management issues

Conclusion: A ‘particular interest’; more than a ‘mere intellectual or emotional concern’;
‘no mere busybody’





Australian Conservation Foundation v Minister for Resources (1989) 19 ALD 70

ACF No 2

Davies J recognised the standing of the ACF but not of a landowner whose property adjoined the site where a challenged development was planned.

“the community at the present time expect that there will be a body such as the ACF to concern itself with this particular issue and expects the ACF to act in the public interest to put forward a conservation viewpoint as a counter to the viewpoint of economic exploitation.” at 74.

Animals' Angels v Secretary, Department of Agriculture (2014) 228 FCR 35



- Standing granted on basis of '**sufficient interest**':
 - It didn't matter that AA was based in Germany and had no Australian members. The fact that they had had an Australian representative conducting investigations for 8 years meant they had a 'sufficient presence' in Australia;
 - Applying the 'multifactorial' approach from *North Coast*:
 - AA had been recognised and consulted on live export issues by the Department;
 - AA had devoted financial resources to animal welfare in Australia in carrying out its investigation activities; and
 - its objects intersected with the purposes of the Act (though following *Argos*, the Court wasn't sure this was necessary)
 - NB other claims by similar interest groups have had mixed success



Other (Public) Interest Groups



Ogle v Strickland (1987) 71 ALR 41:

- Hail Mary film permitted. Decision challenged by 2 priests under ADJR act.
- Priests found to have standing under ADJR Act because repelling blasphemy was a **necessary incident** of their vocation and professional calling – beyond mere e/i concern.
- Also blasphemy was ground of censorship under the Customs (Cinematograph Films) Regulations. Also crim offence at CL (para 34)!



Right to Life Association (NSW) v Sec, Cth Dept of Human Services and Health (1995) 128 ALR 258:

- Standing of RTLA denied because concerns **didn't relate to purposes/objects of statutory scheme** (Therapeutic goods legislation);
- 'only an **intellectual, philosophical and emotional concern**' (Lockhart J)
- Only **believed** themselves aggrieved (Beaumont J)



Trade Unions

- **TRADE UNIONS** will generally have standing where their members would have standing—and where issue affects employment interests of members:
 - *Shop Distributive and Allied Employees Association v Minister for Industrial Affairs (SA)* (1995) 183 CLR 552: standing granted because retail employees' employment interests were affected by decision to allow Sunday trading in the CBD.
 - *Australian Institute of Marine and Power Engineers v Secretary, Department of Transport* (1986) 71 ALR 73: Union had standing to challenge manning notice (setting out minimum safe number of people required to operate ship).
 - *Australian Foreman Stevedores Association v Crone* (1989) 20 FCR 377: Union had no standing to challenge decision to permit co that employed non-union labour to import ships. More akin to competitive interest. Decision held not to affect employment interests of union members.





Interests need to be linked to statute?

HCA View

Argos Pty Ltd v Corbell (2014) 254 CLR 394

'The applicant must be "a person aggrieved", a criterion which may be satisfied if the applicant is a person whose interests are **adversely affected** by the decision. The text of the criterion, on its face, **does not allow for its expansion or contraction according to the scope and purpose of the enactment under which the decision is made**. It is not to be read or applied with reference to normative considerations based on the **policy** of the enactment. To do so by reference to individual enactments would undermine an **important purpose of the ADJR Act**, which was to **simplify** judicial review processes.'

(French CJ and Keane J [42]). See also Gageler J at [80]-[86] and Hayne and Bell JJ at [64]-[68].





Purely Commercial Interests

Argos Pty Ltd v Corbell (2014) 254 CLR 394

Development of a derelict shopping centre (Giralang ACT) – permission given for development by Minister – included new Woolworths

Three applicants:

- Landlord of nearby shopping centre (Kaleen) (NB was not given standing)
- IGA shop operator (Kaleen)
- IGA shop operator (Evatt)

IGA owners claimed they would lose up to 10% profits

Applicants not given chance to comment on development proposal



Purely Commercial Interests (cont)



Argos Pty Ltd v Corbell (2014) 254 CLR 394

ACT courts found that purely economic/commercial interests were, as a **general rule**, not enough to give rise to standing.

HCA **unanimously rejected** this 'general rule' and said proprietors of IGAs had standing (though not landlord):

- French CJ and Keane J referred to Ellicott J's statement in *Tooheys* re broad interpretation of standing rule and said of challenge by owners that 'if their challenge to the lawfulness of the decision proves to have merit, the consequences of the competitive pressures resulting from the decision they seek to challenge can properly be described as a situation of 'unfair competition' rather than mere competition' (at [35]).
- Landlord different because not enough evidence that his business would suffer similarly ([36]).

<http://www.abc.net.au/news/2011-08-19/approval-for-giralang-shops/2846774>

<http://www.abc.net.au/news/2014-12-10/giralang-shops3a-high-court-upholds-challenge-to-development/5956928>



Competitors after *Argos*

- In order to have standing a competitor must show that their economic interests are **likely** to be affected. It's not sufficient to show that they ***might*** be. Or that their relative market position will suffer.

Alphafarm Pty Ltd v SmithKline Beecham (Australia) Pty Ltd (1994) 49 FCR 250:

- SmithKline had no standing to challenge a decision which benefited Alphapharm, but had no direct effect on it.
- Ct said it's not appropriate to use the ADJR Act to vindicate a purely commercial interest.



Argos Pty Ltd v Corbell (2014) 254 CLR 394:

- IGA operators were able to show on the **balance of probabilities** that their interests were **likely** to be affected to a **not insignificant** degree.
- Majority held landlord did not have standing because claim was that supermarket “might” affect rent.
- Compare remoteness; degrees of interest (HCA referred to *McHattan* AAT case)



Statutory/open standing

What's next...

Statute Based Standing: Look at the Statute!



- Statutes can modify standing rules

e.g. Open Standing

Truth About Motorways p/l v Macquarie Infrastructure Investment Management Ltd (2000) 200 CLR 591



- ACCC or 'any other person' may bring an action for an injunction under s80 of the *Competition and Consumer Act 2010* (Cth).
- HCA – such open standing provisions should be construed liberally because Parlt has inserted them in the public interest. They do not contravene s 75 'matter' rule.

If the statute doesn't say anything, then the **fall-back** position will be either **COMMON LAW** or the **ADJR Act**, depending on basis of challenge.

Open standing

s 123(1) of the Environmental Planning and Assessment Act 1979 (NSW), allows '[a]ny person' to seek remedies against a breach of that Act in the NSW Land and Environment Court.

But grant of open standing to third parties came at the expense of their rights to use merits review.

- Is open standing that involves the diminution of other rights of benefit?
- See also: Taylor R and Kraal D, 'Australia Energy Litigation and Energy Justice Principles' in Agbaitoro G (Ed), *Energy Justice Litigation*, (Springer, forthcoming 2025)



the water' after Gloucester Resources abandons appeal option



By Sarah Maunders

By Michael Cavanagh

By Luisa Rubbo

ABC Mid North Coast

Coal

Thu 9 May 2019





Interveners

What's next...



Joinder and amicus

Joinder

- Inherent (but discretionary) power to join interested persons
- Once joined, an intervener has all the privileges and obligations of a parties
- Court may impose conditions

Amicus Curie

- Friend of the court
- Can make submissions that will assist the court
- Court can appoint an amicus

ADJR Act Joinder and Amicus Curiae



ADJR Act s 12:



Application to be made a party to a proceeding

(1) A person **interested in a decision**, in conduct that has been, is being, or is proposed to be, engaged in for the purpose of making a decision, or in a failure to make a decision, being a decision, conduct or failure in relation to which an application has been made to the Federal Court or the Federal Circuit Court under this Act, may **apply to the court to be made a party** to the application.

(2) The court may, in its discretion:

- (a) grant the application either unconditionally or subject to such conditions as it thinks fit; or
- (b) refuse the application.

United States Tobacco Co v Minister for Consumer Affairs (1988) 20 FCR 520 – party will be joined only if they can **usefully add to the arguments** before the court and it **won't add to the expense/length** of the proceedings. Being granted *amicus curiae* status is a (generally less restrictive) alternative, entirely within the court's **discretion**.

What is the test?: similar to standing=interests affected (will be influenced by statutory and factual context see US Tobacco case pp364-365)

Attorney-General's fiat

The Attorney-General, as first law officer, is empowered to challenge any law or decision for illegality on their own accord (ex mero motu)

The A-G can also pass on his or her standing to sue in the public interest to someone claiming to represent the public interest, by granting them a fiat (an ex relatione (on behalf of) claim). Full name of the McBain case is therefore *Re McBain; Ex parte Attorney-General (Cth) ex rel Australian Episcopal Conference of the Roman Catholic Church* (2002) 209 CLR 372. Aka 'relator action'.

A decision to (or not to) grant a fiat is not reviewable: *Gouriet v Union of Post Office Workers* [1978] AC 43



AG Michelle Rowland



Summary

What's next...



Individuals

Consider whether 'private right' = legal right.

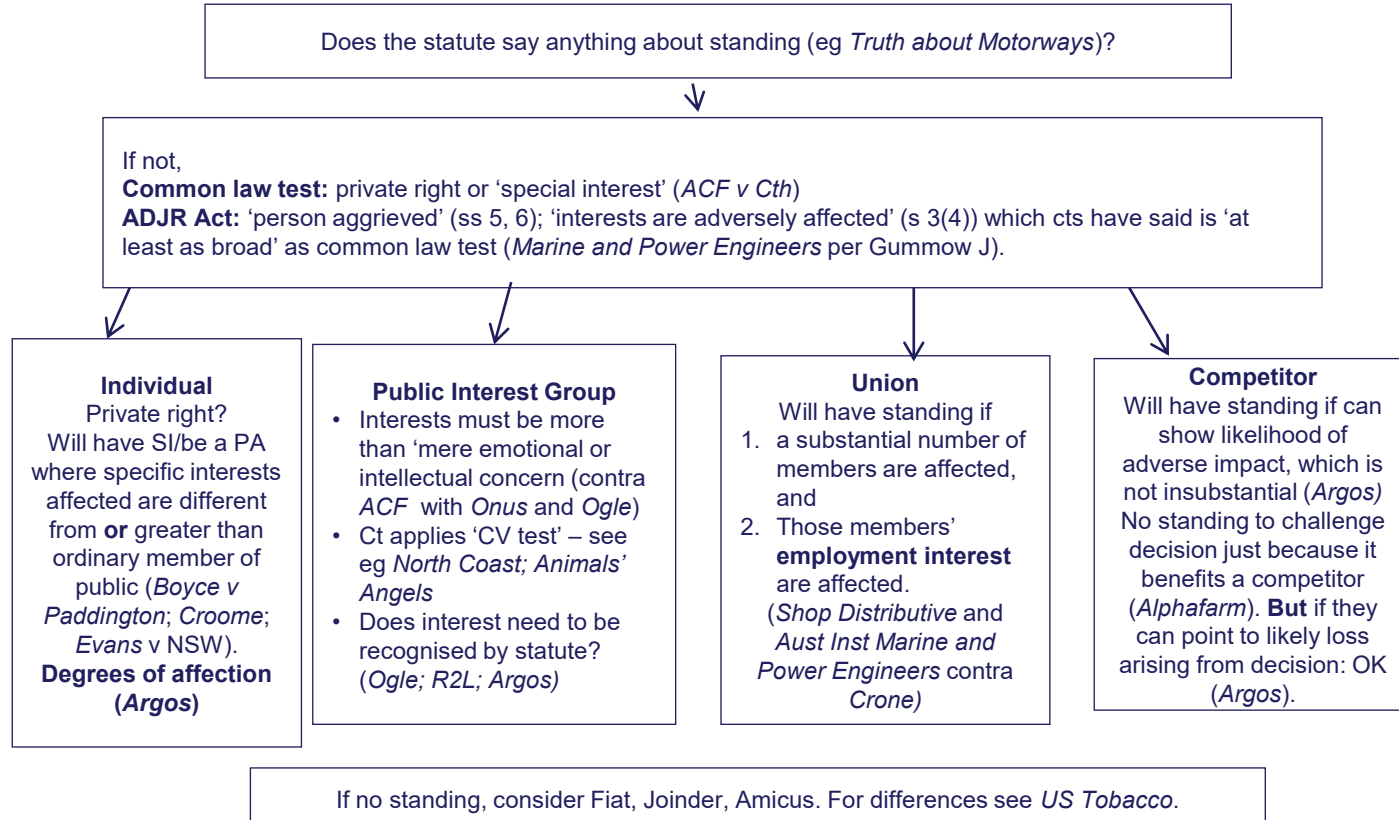
If not, need to have a 'special interest' – will need to show:

(1) An interest that is **different** from **ordinary** members of the public. Though it is ok if they are part of a **group** (even a very large group) with a specific, identifiable interest (eg *Croome v Tasmania* (1997) 191 CLR 119).

Genuine effect, **not too remote** (*Argos Pty Ltd v Corbell* (2014) 254 CLR 394)

(2) That they **will be disadvantaged** by the action, even if the action has not yet occurred (eg *Evans v NSW* (2008) 168 FCR 576).

STANDING TO SEEK JUDICIAL REVIEW - OVERVIEW





Reflections

What's next...



The Contested Concept of “Lawfare”



- Environmental groups challenge decisions just to frustrate/delay. This is bad for the economy – reduces willingness to invest in Australia
- Allows unelected judges to interfere in decisions made by democratically elected ministers.
- Litigation funders taking advantage

- No evidence that open standing significantly increases litigation – no evidence of ‘floodgates’
- Generous standing protects ‘rule of law’ – ensures govt cannot act outside legal limits of powers, irrespective of whether individual interests are harmed
- **Public interest in govt acting within legal power**



Questions for Discussion

Do you think these post-ACF cases (particularly Argos, North Coast and Animals' Angels) suggest that the courts' approach to standing has evolved in the last 35 years?

Do you think the ADJR Act's broad purpose of improving Government decision-making has influenced the courts to relax the standing test(s)?

Can you think of any problems with requiring the interest to be one that is recognised by the statute?

ALRC recommended in 2012 that ADJR include an equivalent to s 27(2) AAT Act (refer back to Topic 3 slides on standing for details) – why?



Media links referring to “lawfare”

<http://theconversation.com/the-government-vs-the-environment-lawfare-in-australia-46205>

<http://www.theaustralian.com.au/national-affairs/george-brandis-moves-to-end-lawfare-sabotage/news-story/17c875ed6b26ac342cae158e1b512231>

<https://www.theguardian.com/australia-news/2019/nov/15/australian-litigation-funding-giant-rejects-christian-porters-lawfare-claim>

Next week...narrow ultra
vires

What's next...



